

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ANTHONY HERNANDEZ,

Plaintiff,

-against-

INDEX NO.: 811524/2021E

SECOND AMENDED
VERIFIED COMPLAINTJASON VASQUEZ; UNDER COVER 363; ABDIEL
ANDERSON; JODI BROWN; ROBERT JAQUEZ;
DAVID PABON; CLAUDE MEDE; AND JOHN AND
JANE DOE 1 THROUGH 4,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff, ANTHONY HERNANDEZ, by his attorneys, DeVerna Law, as and for his
Second Amended Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York.
2. Plaintiff's claims arise out of a September 9, 2019, incident, in which defendants acting under color of state law, used excessive force upon Plaintiff. As a direct and proximate cause of the use of force, Plaintiff suffered severe and lasting physical injury, the extent of which is still unknown. On the same day, defendants acting under color of state law, unlawfully arrested and detained Plaintiff. As a direct and proximate cause of the unlawful arrest and detainment, Plaintiff was detained within the New York City Police Department

within the jurisdictional confines of Bronx County, was deprived of his liberty for several hours and suffered serious and emotional injuries. These acts occurred while other defendants unlawfully failed to intervene despite having the opportunity to do so.

3. This action and all associated claims have been timely brought within the applicable statutes of limitations.
4. The Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.
5. The Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of cost and attorneys' fees, and such other relief as the Court may deem just and proper.

PARTIES

6. Plaintiff is a resident of Bronx County, State of New York.
7. Defendant Police Officer JASON VASQUEZ (hereafter, "Defendant VASQUEZ"), Shield #4851, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department, and as such was acting in the capacity of an agent, servant and employee of the City of New York. On the date of the incident, Defendant VASQUEZ was a Detective assigned to Narcotics Borough Bronx (hereafter, "NARCB BX"). Defendant VASQUEZ is being sued in his individual and official capacities.
8. Defendant Police Officer ABDIEL ANDERSON (hereafter, "Defendant ANDERSON"), Shield # 01429, is and was at all times relevant herein, an office employee, and agent of the New York City Police Department, and as such was acting in the capacity of an agent, servant and employee of the City of New York. On the date of the incident, Defendant ANDERSON was a Detective assigned to Narcotics Borough Bronx (hereafter,

“NARCB BX”). Defendant ANDERSON is being sued in his individual and official capacities.

9. Defendant Police Officer JODI BROWN (hereafter, “Defendant BROWN”), Shield # 04057, is and was at all times relevant herein, an office employee, and agent of the New York City Police Department, and as such was acting in the capacity of an agent, servant and employee of the City of New York. On the date of the incident, Defendant BROWN was a Detective assigned to Narcotics Borough Bronx (hereafter, “NARCB BX”). Defendant BROWN is being sued in his individual and official capacities.
10. Defendant Police Officer ROBERT JAQUEZ (hereafter, “Defendant JAQUEZ”), Shield # 00192, is and was at all times relevant herein, an office employee, and agent of the New York City Police Department, and as such was acting in the capacity of an agent, servant and employee of the City of New York. On the date of the incident, Defendant JAQUEZ was a Detective assigned to Narcotics Borough Bronx (hereafter, “NARCB BX”). Defendant JAQUEZ is being sued in his individual and official capacities.
11. Defendant Police Sergeant DAVID PABON (hereafter, “Defendant PABON”), Shield # 00128, is and was at all times relevant herein, an office employee, and agent of the New York City Police Department, and as such was acting in the capacity of an agent, servant and employee of the City of New York. On the date of the incident, Defendant PABON was a Detective assigned to Narcotics Borough Bronx (hereafter, “NARCB BX”). Defendant PABON is being sued in his individual and official capacities.
12. Defendant Detective CLAUDE MEDE (hereafter, “Defendant MEDE”), Shield # 3751, is and was at all times relevant herein, an office employee, and agent of the New York City Police Department, and as such was acting in the capacity of an agent, servant and

employee of the City of New York. On the date of the incident, Defendant MEDE was a Detective assigned to Narcotics Borough Bronx (hereafter, "NARCBBX"). Defendant MEDE is being sued in his individual and official capacities.

13. Defendant Police Officer Under Cover 363 (hereafter, "Defendant UC 363"), Shield # ___, is and was at all times relevant herein, an office employee, and agent of the New York City Police Department, and as such was acting in the capacity of an agent, servant and employee of the City of New York. On the date of the incident, Defendant 363 was a Detective assigned to Narcotics Borough Bronx (hereafter, "NARCBBX"). Defendant 363 is being sued in his individual and official capacities.
14. Defendants John and Jane Doe 1 through 4 were police officers, detectives, undercover police officers, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the real names and/or shield number of Defendants John and Jane Doe 1 through 4, but such information is believed to be in the possession of the defendants. At all times relevant herein, Defendants John and Jane Doe 1 through 4 were acting as agents, servants and employees of the City of New York and the NYPD. Defendants John and Jane Doe 1 through 4 are sued in their individual and official capacities.
15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and

employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

16. At all times relevant hereto, City of New York, operated, maintained, managed, supervised and controlled the New York City Police Department (“NYPD”) as part of and in conjunction with its municipal function.
17. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

STATEMENT OF FACTS

18. On September 9, 2019, at approximately 1:29 PM, Plaintiff was lawfully present in the vicinity of 49 West 225th Street, Bronx, NY.
19. Defendants, including Defendant VASQUEZ, Defendant ANDERSON, Defendant BROWN, Defendant JAQUEZ, Defendant PABON, Defendant MEDE, and POLICE OFFICER JOHN AND JANE DOE 1 – 4 who were in plainclothes and otherwise not indicating they were law enforcement officers suddenly and without explanation ran upon and then after Plaintiff.
20. Defendants, including Defendant VASQUEZ, Defendant ANDERSON, Defendant BROWN, Defendant JAQUEZ, Defendant PABON, and Defendant MEDE, and POLICE OFFICER JOHN AND JANE DOE 1 – 4, acting in concert, grabbed Plaintiff and slammed him upon the ground.

21. Defendants, acting in concert, then began punching and kicking Plaintiff multiple times in the body and face causing him severe physical injuries, the extent of which are still unknown.
22. The Defendants officers, including Defendant VASQUEZ, Defendant ANDERSON, Defendant BROWN, Defendant JAQUEZ, Defendant PABON, DEFENDANT UC 363 and POLICE OFFICER JOHN AND JANE DOE 1 – 4 did not observe Plaintiff committing any crime or violating any law or local ordinance.
23. Defendants arrested Plaintiff.
24. Plaintiff did not resist arrest.
25. Based on information and belief, a Defendant supervisor, was present on the scene and did not stop the unlawful arrest of Plaintiff.
26. Defendants did not have probable cause or reasonable suspicion to detain or arrest Plaintiff.
27. Defendants searched Plaintiff's person without his authority or permission.
28. Defendant found no contraband or anything illegal on Plaintiff.
29. Plaintiff was placed into an unmarked van where he was held for several hours, during which time he asked repeatedly for medical treatment – requests which were ignored.
30. Plaintiff was eventually transported to the 50th Precinct.
31. At the 50th Precinct, Plaintiff was stripped of his clothes and suffered a humiliating strip search of his naked body.
32. At the 50th Precinct, Plaintiff continued to ask for medical attention.
33. Plaintiff was finally transported to the hospital.
34. After being treated at the hospital, Plaintiff was brought back to the 50th Precinct, and then ultimately brought to Central Booking.

35. The Defendants Officers, including Defendant Vasquez and Under Cover Defendant 363 falsely stated to the Bronx County District Attorney's Office that Plaintiff had committed a crime despite knowing that they lacked a legal and a factual basis to allege that Plaintiff committed any crime.
36. During all of the events described, Defendants acted maliciously, willfully, knowingly and with the specific intent to injure Plaintiff and violate his civil rights.
37. The force used by Defendants caused Plaintiff personal, physical, and emotional injuries for which he later sought medical treatment, and, extent of which are still unknown.
38. At all times relevant hereto, Defendants were involved in the decision to violate Plaintiff's civil rights, including falsely arresting Plaintiff, and failed to intervene in the actions of their fellow officers.
39. Several Defendants, who did not participate in the incident, but were otherwise present and observed the violation of Plaintiff's constitutional rights failed to intercede on Plaintiff's behalf.
40. Plaintiff was falsely charged him with numerous violations of the law including Criminal Sale of Marihuana in the Fourth Degree; Resisting Arrest; and Unlawful Possession of Marihuana (docket number 2019BX024389).
41. Plaintiff was unlawfully detained for approximately sixty hours before he was arraigned in Bronx County Criminal Court and ordered released.
42. At all times relevant hereto, Defendants were involved in the decision to arrest Plaintiff without probable cause or failed to intervene in the actions of his fellow officers when they observed them arresting Plaintiff without probable cause.

43. The unlawful stop, question, frisk, search, false arrest, false imprisonment, unlawful seizure, denial of fair trial, and excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983

34. The above paragraphs are here incorporated by reference as though fully set forth.
35. The defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on the plaintiff without consent.
36. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

Unlawful Stop and Search Under
42 U.S.C. § 1983 Against Individual Defendants

37. The above paragraphs are here incorporated by reference as though fully set forth.
38. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched Plaintiff without reasonable suspicion.
39. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
40. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
41. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

42. The above paragraphs are here incorporated by reference as though fully set forth.
43. The Defendants violated the Fourth and Fourteenth Amendments to the U.S.
44. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
45. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
46. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
47. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
48. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
49. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

50. The above paragraphs are here incorporated by reference as though fully set forth.
51. Dependents arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

52. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
53. Defendant intended to inflict substantial harm upon Plaintiff.
54. Defendant acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
55. Defendant's actions deprived plaintiff of his constitutional rights, under the Sixth and Fourteenth Amendments to the United States Constitution.
56. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

57. The above paragraphs are here incorporated by reference as though fully set forth.
58. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
59. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
60. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Denial of Right to a Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

65. The above paragraphs are here incorporated by reference as though fully set forth.

66. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.
67. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.
68. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.
69. In withholding/creating false evidence against Plaintiff and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
70. As a result of the foregoing, Plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.
71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Unlawful Strip Search

42 U.S.C. § 1983 Against Individual Defendants

73. The above paragraphs are here incorporated by reference as though fully set forth.

74. Plaintiff was searched by defendants without an individualized reasonable suspicion or probable cause to believe that plaintiff was concealing weapons or other contraband, based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.
75. As a result of the aforementioned conduct of defendants, plaintiff Bernard Miller to sustained injuries.
76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct
77. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

JURY DEMAND

78. Plaintiffs hereby demands trial by jury of all issues properly triable thereby.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;
- i) Together with the costs and disbursements of this action, interest and such other relief as is appropriate under the law.

Dated: New York, New York
March 23, 2022



DEVERNA LAW
By John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1615
New York, New York 10038
T- (212) 321-0025
F- (212) 321-0024

ATTORNEY'S VERIFICATION

JOHN PAUL DEVERNA, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a counsel of the law firm of **DEVERNA LAW**, I have read the annexed **SECOND AMENDED VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

Dated: New York, New York
July 29, 2022



DEVERNA LAW
By John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1615
New York, New York 10038
T- (212) 321-0025
F- (212) 321-0024

Index No. : 811524/2021E

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ANTHONY HERNANDEZ,

Plaintiff,

-against-

JASON VASQUEZ, UNDER COVER 363; ABDIEL ANDERSON; JODI BROWN; ROBERT
JAQUEZ; DAVID PABON, CLAUDE MEDE; AND JOHN AND JANE DOE 1 THROUGH 4,

Defendants,

SUMMONS AND SECOND AMENDED VERIFIED COMPLAINT

DEVERNA LAW
By John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1615
New York, New York 10038

To: CORPORATION COUNSEL OF NEW YORK
Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.
Dated
Attorney(s) for